

Tentative Rulings
August 3, 2026
Department 44
2:30 p.m.

*****IMPORTANT – PLEASE READ*****

The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website).

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 between 2:20 and 2:30 p.m.

The access code is 2481 082 7484. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called;**
- 2. Please do not place the call on hold;**
- 3. Minimize all background noise during your call;**
- 4. Please identify yourself, each time, prior to speaking with the court;**
- 5. Disconnect when the court has completed your case or cases;**
- 6. The court prohibits the recording of these proceedings**

CONSERVATORSHIPS

CONSERVATORSHIP OF HOLLY ADAMS

CASE NUMBER: 24PC-0032506

This matter is on calendar for status. The Court has reviewed the memorandum received on July 22, 2026, which raises concerns regarding the conservatorship. An appearance is necessary on today's calendar.

CONSERVATORSHIP OF QUINTEN ATKINSON

CASE NUMBER: 26PC-0033419

This matter is on calendar for hearing on a Petition for Appointment of a Limited Conservator of the Person. Letters of Temporary Conservatorship issued on July 14, 2026, and are set to expire today unless further extended. The matter has been properly noticed with proof of service on file. Proof of service of the Citation has been filed. The report of the assessment from Far Northern Regional Center has been filed. The Public Defender was previously appointed as counsel for the Conservatee. The Court Investigator's report filed on July 21, 2026, recommends granting the Petition. The Court Investigator indicates the Conservatee will attend the hearing.

This matter is also on calendar for status of objection and setting of a contested hearing. At the last hearing, Chris Adkinson appeared and stated his objection. A formal objection has not been filed. The Court intends to **GRANT** the Petition, absent an appearance and objection as noted below. A proposed Order has not been lodged in compliance with Local Rule 15.06. Petitioners shall prepare the order. The matter is set for **Monday, December 7, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Conservatorship Care Plan and proof of service of the Notice of Conservatee's rights. The matter is set for **Monday, August 2, 2027, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office or Chris Adkinson.**

CONSERVATORSHIP OF ANDREW BENHAM

CASE NUMBER: 24PC-0032343

This matter is on calendar for status of removal of co-conservator and transfer of the conservatorship to San Diego County. No further documents have been filed regarding removal of Anthony Benham as co-conservator or to transfer the proceedings to San Diego. **An appearance is necessary on today's calendar.**

CONSERVATORSHIP OF MARK GILLIGAN

CASE NUMBER: 26PC-0033375

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person and Estate. Temporary Letters of Conservatorship issued to Petitioners on May 11, 2026, and are set to expire today unless further extended. The Court previously determined the matter to be properly noticed. No further documents have been filed to address the issues raised on June 29, 2026. No proof of service of the Citation has been filed. No Duties and of Conservator has been filed. A Capacity Declaration has not been filed. Considering Petitioner's failure to file and serve the documents necessary to move forward on the Petition, the Petition is **DENIED** without prejudice. The temporary orders are **VACATED** and Attorney Anderson is relieved as counsel for the Conservatee. The clerk is directed to close the file. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF WILLIAM SMITH

CASE NUMBER: 26PC-0033496

This matter is on calendar for hearing on a Petition for Appointment of a Temporary Conservator of the Person and Estate. The matter has not been properly noticed. There is no proof of service

for any parties entitled to notice. The Conservatee must be personally served at least five court days before the hearing. All other individual required to be named in the Petition for Appointment of Conservator may be served by mail. The Petition is **DENIED** for lack of service. The Court notes the future date of August 31, 2026, for hearing on a Petition for Appointment of Conservator of the Person and Estate. **No appearance is necessary on today's calendar.**

ESTATES

ESTATE OF CAROL BAILEY

CASE NUMBER: 26PB-0033485

This matter is on calendar for hearing on a Petition to Determine Succession to Primary Residence. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has not been lodged in compliance with Local Rule 15.06. Petitioner shall prepare the order. The clerk is directed to close the file upon processing of the order. **No appearance is necessary on today's calendar.**

ESTATE OF REBECCA BEEBE

CASE NUMBER: 25PB-0032798

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed as ordered on April 27, 2026. This matter is also on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, October 5, 2026, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal and Status of Administration. If a Final Inventory and Appraisal and Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Final Inventory and Appraisal, failure to timely close the estate administration, and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the October 5, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES BREMER

CASE NUMBER: 26PB-0033414

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The matter has been properly noticed with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The matter is set for **Monday, December 7, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 2, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF CAROLYN BROWN

CASE NUMBER: 25PB-0032926

This matter is on calendar for confirmation of filing the Inventory and Appraisal and Status of Administration. The Inventory and Appraisal has not been filed. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, October 5, 2026, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal and Status of Administration. If a Final Inventory and Appraisal and Petition for Final Distribution

cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Final Inventory and Appraisal, failure to timely close the estate administration, and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the October 5, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF AYDIN FACEY

CASE NUMBER: 26PB-0033366

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The Court previously determined the matter properly noticed and proof of publication filed. No objections have been raised. A Guardian Ad Litem has been appointed for all minor beneficiaries. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. Confirmation of the issuance of a bond in the amount of \$16,000.00 has been filed and Letters will issue. The matter is set for **Monday, December 7, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 2, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF ARGENT HALE

CASE NUMBER: 24PB-0032654

This matter is on calendar for further proceedings on the Second and Final Account and Report and Petition for Final Distribution. An Order Settling the Amended Second Account and Report and Petition for Final Distribution was filed on May 12, 2026. This matter is set for **Monday, August 31, 2026, at 2:30 p.m. in Department 44** to confirm the filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF BILLY HOLLAND

CASE NUMBER: 25PB-0032953

This matter is on calendar for hearing on the First and Final Report of Executor on Waiver of Account and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed Order has been submitted and will be executed by the Court. This matter is set for **Monday, September 21, 2026, at 2:30 p.m. in Department 44** to confirm the filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF STANLEY HOLTZER

CASE NUMBER: 23PB-0032160

This matter is on calendar for further proceedings on a Report of Sale and Petition for Order Confirming Sale of Real Property. No further documents have been filed to address the issues raised on June 15, 2026. An amended Petition has not been filed and served. A consent by all known heirs has not been filed as required by Probate Code Section 9221. Considering

Petitioner's failure to file the documents necessary to move forward, the Petition is **DENIED** without prejudice.

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered on June 15, 2026. The matter is continued to **Monday, October 5, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the October 5, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF BEVERLY JAMES
CASE NUMBER: 26PB-0033413

This matter is on calendar for further proceedings on a Petition to Determine Succession to Primary Residence. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged, however it is incomplete. Petitioner shall submit a new completed order for the Court's execution. The matter is continued to **Monday, August 24, 2026, at 2:30 p.m. in Department 44** for confirmation of receipt of order. **No appearance is necessary on today's calendar.**

ESTATE OF ERNEST LEVESQUE
CASE NUMBER: 26PB-0033268

This matter is on calendar for further proceedings on a Petition for Probate of Will. The Court previously determined the matter properly noticed. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The will is not self-proving, in that the subscribing witnesses did not sign under penalty of perjury. Proper Proof of Subscribing Witness has been filed. The Petition is **GRANTED**. A proposed Order has not been lodged in compliance with Local Rule 15.06. Petitioner shall prepare the order. The Will is to be admitted to probate, and the original will shall be filed. No bond is required by the will, and letters shall issue. The matter is set for **Monday, December 7, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 2, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF HILDA LINARES
CASE NUMBER: 22PB-0031573

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed indicating that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, March 1, 2027, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal

Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the March 1, 2027, date. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA MCDANIEL

CASE NUMBER: 26PB-0033421

This matter is on calendar for hearing on an amended Petition to Determine Succession to Primary Residence. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The clerk is directed to close the file upon processing of the order. **No appearance is necessary on today's calendar.**

ESTATE OF ERIC MELENDEZ

CASE NUMBER: 26PB-0033217

This matter is on calendar for further proceedings on the Petition for Probate of Will and status of the storage unit. The Court previously determined the matter to be properly noticed. The original proof of publication has now been filed. An objection was previously filed by Shawna Melendez. The Court notes a trial was held on July 10, 2026, in which orders were made regarding disputed items held in storage. At the last hearing, the matter was continued to allow additional time to address the items held in storage. **An appearance is necessary on today's calendar.**

ESTATE OF THEODORE NICHOLSON

CASE NUMBER: CVPB20-0030645

This matter is on calendar for further proceedings on a Petition for First and Final Account and Report and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. A supplemental declaration has been filed which sufficiently addresses the issues raised on July 13, 2026. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed Order has been submitted and will be executed by the Court. This matter is set for **Monday, October 5, 2026, at 2:30 p.m. in Department 44** to confirm the filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF DANNY PRICE

CASE NUMBER: 25PB-0033114

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed on June 15, 2026, is accepted by the Court. The Court notes the future date of November 23, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF CHRYSTAL REED

CASE NUMBER: 25PB-0033128

This matter is on calendar for hearing on the First and Final Account and Report of Administrator and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has been submitted and will be executed by the Court. The Court notes the estate is insolvent. This matter is set for **Monday, August 24, 2026, at 2:30 p.m. in Department 44** to confirm the filing of a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF ANTONIO SILVA

CASE NUMBER: 23PB-0032237

This matter is on calendar to confirm the filing of Receipts and a Petition for Final Discharge. No receipts have been filed. No Petition for Final Discharge has been submitted. A Status Report has been filed which indicates the Franchise Tax Board was not previously provided, thus additional time is requested before the estate is distributed. The matter is continued to **Monday, November 16, 2026, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF KENNETH STEPHENS

CASE NUMBER: 26PB-0033410

This matter is on calendar for confirmation of receipt and execution of a revised order on the Spousal Property Petition. An order confirming Petitioner's ½ interest in the property has not been submitted. The matter is continued to **Monday, August 31, 2026, at 2:30 p.m. in Department 44** for confirmation of receipt and execution of a revised order. **No appearance is necessary on today's calendar.**

ESTATE OF BARBARA WILSON

CASE NUMBER: 26PB-0033456

This matter is on calendar for hearing on a Petition for Probate of Will. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The Will is admitted to probate, and a certified copy of the will shall be filed. No bond is required by the will, and letters shall issue. The matter is set for **Monday, December 7, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 2, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

TRUSTS

IN RE: GEORGE E. HERRICK AND M. GLORIA HERRICK 2003 REVOCABLE TRUST

CASE NUMBER: CVPB20-0030695

This matter is on calendar for further proceedings on a Motion to Enforce Settlement Agreement and all remaining Petitions and Motions. A copy of the settlement agreement from October of 2025 has not been filed, therefore the Court is unable to determine the terms of the agreement, whether the agreement resolves all pending petitions and motions, and whether the requested judgment is appropriate. The matter is continued to **Monday, September 14, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Motion to Enforce Settlement Agreement and all remaining Petitions and Motions. A copy of the settlement agreement from October of 2025 is required to be filed. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: KREBS FAMILY TRUST

CASE NUMBER: 26PB-0033442

This matter is on calendar for hearing on a Petition for Removal of Trustee, Appointment of a Professional Fiduciary, to Enjoin the Use of Trust Funds to Defend this Litigation, Compel Accounting, and Attorney's Fees and Costs. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**, with the exception of attorney's fees and costs which shall be determined by the filing of a noticed motion. No proposed order has been lodged in compliance with Local Rule 15.06. Petitioner shall prepare the order. This matter is continued to **Monday, October 26, 2026, at 2:30 p.m. in Department 44 for** status of accounting and appointment of a professional fiduciary. **No appearance is necessary on today's calendar.**

IN RE: MARY ELEANOR DAVIS AND JOAN KAY DEXTER REVOCABLE LIVING TRUST

CASE NUMBER: 26PB-0033349

This matter is on calendar for hearing on a Petition for Order Directing Return of Possession of Real and Personal Property to Estate. Proper proof of service has been filed for the beneficiaries of the trust who did not file a waiver of notice. However, the matter has not been properly noticed. Notice is required to be personally served on the people in possession of the property. The proof of service filed on June 17, 2026, indicates service by mail. Additionally, the proof of service filed on June 23, 2026, indicates proof of service by posting and mailing but no order for posting and mailing has been granted for the occupants of the property. The matter is continued to **Monday, October 12, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Order Directing Return of Possession of Real and Personal Property to Estate. A new Notice of Hearing on Petition to Determine Claim to Property is required to be filed and served for the continued hearing date, along with a copy of the Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: REX AND MILDRED MORAVEC 1994 REVOCABLE TRUST

CASE NUMBER: 25PB-0032780

This matter is on calendar for further proceedings regarding status of civil case and the Petition for Instructions. The Court notes there is a companion Civil case, 204485, which has ordered this probate proceeding stayed pending resolution of the civil matter. **An appearance is necessary on today's calendar for status.**